

SENATE No. 2612

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for utility shutoff protections during periods of extreme heat.

PETITION OF:

NAME:

Joanne M. Comerford

DISTRICT/ADDRESS:

Hampshire, Franklin and Worcester

SENATE No. 2612

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 2612) (subject to Joint Rule 12) of Joanne M. Comerford for legislation to provide for utility shutoff protections during periods of extreme heat. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for utility shutoff protections during periods of extreme heat.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 25 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 24. (a) Not less than annually, the department shall publish a report of the
4 information collected pursuant to section 42A of chapter 40, section 58A of chapter 164, section
5 124F of said chapter 164 and section 11F of chapter 165. The department shall make the report
6 publicly available on its website.

7 (b) Annually, the department shall conduct a public information campaign to inform
8 customers of shut-off protections for financial hardship during the summer months and available
9 payment assistance programs. The department shall develop: (i) accessible, multi-lingual and
10 easily comprehensible web-based educational materials; and (ii) a robust virtual and in-person
11 statewide outreach program to educate low and moderate income communities on the protections
12 available to them under section 42A of chapter 40, section 58A of chapter 164, section 124F of

said chapter 164 and section 11F of chapter 165. Annually, the department shall collect and report data on its outreach efforts including: (1) outlets used to disseminate the required information; (2) the location, dates and number of attendees at in-person outreach events; (3) the languages used in written outreach materials; and (4) the amount of people who registered for arrearage management plans following the public outreach program. The department shall make these reports available to the public on its website.

SECTION 2. Section 42A of chapter 40 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following paragraph:-

No city, town or water district shall, between May fifteenth and September thirtieth or during a period in which the National Weather Service has issued an excessive heat warning or advisory, refuse to restore or intentionally shut off the water service to any resident who cannot pay an overdue charge because of financial hardship. Cities, towns and water districts shall provide monthly reports to the department of public utilities of the following information: (i) the number of households that would have otherwise lost water service if this paragraph did not apply; (ii) the municipalities and zip codes of households that would have lost service; and (iii) the estimated cost to the service provider of providing service that would have otherwise ceased. The department of public utilities shall promulgate regulations, pursuant to chapter 30A, that establish daily fines for any city, town or water district that violates this section, and may promulgate other rules and regulations consistent with this section, pursuant to said chapter 30A, as it deems reasonable and necessary to implement this section.

SECTION 3. Section 58A of chapter 164 of the General Laws, as so appearing, is hereby amended by adding the following paragraph:-

35 No municipal lighting plant shall, between May fifteenth and September thirtieth or
36 during a period in which the National Weather Service has issued an excessive heat warning or
37 advisory, refuse to restore or intentionally shut off the electricity supply service to any customer
38 who cannot pay an overdue charge because of financial hardship, when such electric service is
39 used to provide temperature control, or otherwise protect residents and their property from
40 weather or climate conditions. Cities, towns and water districts shall provide monthly reports to
41 the department of public utilities of the following information: (i) the number of households that
42 would have otherwise lost electric service if this paragraph did not apply; (ii) the municipalities
43 and zip codes of households that would have lost service; and (iii) the estimated cost to the
44 service provider of providing service that would have otherwise ceased. The department shall
45 promulgate regulations, pursuant to chapter 30A, that establish daily fines for any municipal
46 light plant that violates this section. The department may promulgate other rules and regulations
47 consistent with this section, pursuant to said chapter 30A, as it deems reasonable and necessary
48 to implement this section.

49 SECTION 4. Section 124F of said chapter 164, as so appearing, is hereby amended by
50 striking out the last sentence.

51 SECTION 5. Said section 124F of said chapter 164, as so appearing, is hereby further
52 amended by adding the following 3 paragraphs:-

53 No electric company shall, between May fifteenth and September thirtieth or during a
54 period in which the National Weather Service has issued an excessive heat warning or advisory,
55 refuse to restore or shut off electric service to any residential customer who cannot pay an
56 overdue charge because of financial hardship, when such electric service is used to provide

temperature control, or otherwise protect residents and their property from weather or climate conditions.

Electric companies shall provide monthly reports to the department of public utilities of the following information: (i) the number of households that would have otherwise lost electric service if this paragraph did not apply; (ii) the municipalities and zip codes of households that would have lost service; and (iii) the estimated cost to the service provider of providing service that would have otherwise ceased.

The department shall promulgate regulations, pursuant to chapter 30A, that establish daily fines for any electric company that violates this section. The department may promulgate other rules and regulations consistent with this section, pursuant to said chapter 30A, as it deems reasonable and necessary to implement this section.

SECTION 6. Chapter 165 of the General Laws is hereby amended by inserting after section 11E the following section:-

Section 11F. (a) No corporation or company shall, between May fifteenth and September thirtieth or during a period in which the National Weather Service has issued an excessive heat warning or advisory, refuse to restore or intentionally shut off the water service to any residential customer who cannot pay an overdue charge because of financial hardship.

(b) Corporations and companies shall provide monthly reports to the department of public utilities of the following information: (i) the number of households that would have otherwise lost water service if this paragraph did not apply; (ii) the municipalities and zip codes of households that would have lost service; and (iii) the estimated cost to the service provider of providing service that would have otherwise ceased.

79 (c) The department shall promulgate regulations, pursuant to chapter 30A, that establish
80 daily fines for any company violating this section. The department may promulgate other rules
81 and regulations consistent with this section, pursuant to said chapter 30A, as it deems reasonable
82 and necessary to implement this section.